

The Corporation of the Municipality of Bluewater

By-Law Number 121 – 2024

Being a By-law to regulate and control the movement of Off Road Vehicles (ORV's) on any highway's or road allowance's under the control of the Municipality of Bluewater

Whereas section 11(1) of the Municipal Act, S.O. 2001, c.25, as amended, assigns spheres of jurisdiction and authorizes municipalities to pass by-laws respecting matters pertaining to highways in their jurisdiction; and

Whereas the Highway Traffic Act, authorizes the Council of a municipality to pass by-laws permitting the operation of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or any part or parts of such highway; and,

Whereas Ontario Regulation 316/03 made under the Highway Traffic Act, defines an Off-Road Vehicle (ORV) and provides regulations governing the operation of Off-Road Vehicles upon highways; and

Whereas the Council of the Corporation of the Municipality of Bluewater has directed staff to prepare a by-law regulating the control and movement of Off-Road Vehicles (ORV's) on any highway or road allowance under the control of the municipality of Bluewater.

Now therefore The Council of the Corporation of the Municipality of Bluewater enacts as follows:

1. Definitions

For the purpose of this this By-law:

"Off-Road Vehicle (ORV)" means an off-road vehicle within the meaning of the **Off-Road Vehicles Act**, R.S.O. 1990, c. O.4 and the various vehicles as defined under this section of the By-law.

The following definitions have the same meaning as in OREG316/03:

- a) **"All-Terrain Vehicle (ATV)"**
- b) **"Extreme terrain vehicle (ETV)"**
- c) **"Multi-purpose off-highway utility vehicle (UTV)"**
- d) **"Off-road motorcycle (ORM)"**
- e) **"Recreational off-highway vehicles" (ROV)**

"Highway" means a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct or trestle, any part of which is intended for or used by the

general public for the passage of vehicles and includes the area between the lateral property lines thereof;

"Municipality" means the Corporation of the Municipality of Bluewater

"Urban Area" means any area in the Municipality of Bluewater where the highway speed limit is 50 km/hr or less.

"Sidewalk" means that portion of a highway between the curb line or edge of a roadway and the adjacent property line that is designed and intended for the use of pedestrians;

"Manager" Means the Municipality of Bluewater's Manager of Public Works or their designate.

"Officer" means any Person authorized by the Municipality to enforce by-laws and includes a Municipal law enforcement officer appointed to enforce the by-laws of the Municipality or a police officer while in a course of their duties.

2. Regulation of Off-Road Vehicles on Highways

2.1 Off-road vehicles shall be permitted upon the highways under the jurisdiction of the Municipality, in accordance with Ontario Regulation 316/03 of the Highway Traffic Act, as amended, and the Off-Road Vehicles Act, as amended.

2.2 The types of Off-Road Vehicles that are applicable to this by-law are the following:

- a) "All-Terrain Vehicle (ATV)"
- b) "Extreme terrain vehicle (ETV)"
- c) "Multi-purpose off-highway utility vehicle (UTV)"
- d) "Off-road motorcycle (ORM)"
- e) "Recreational off-highway vehicles" (ROV)

2.3 In any urban area, operation of an off-road vehicle shall only be permitted on highways to allow the operator to depart or return from inside/outside the urban limits by the closest and most direct route for the sole purpose for the operator to depart or return to their residence; and/or at a service station refuel.

2.4 No person shall operate an off-road vehicle within the Municipality between the hours of 10:00 p.m. and 6:00 a.m. the following day:

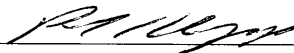
2.5 No person shall operate an off-road vehicle on any of the following under the jurisdiction of the Municipality: Community Centre; park, sports field, playground or trail; cemeteries; municipal public property within the municipality without the consent of the Municipality; any unopened road allowance unless such vehicle is required for emergency response purposes or unless prior permission has been obtained by the Manager; and any sidewalk or boulevard.

2.6 No person shall operate an off-road vehicle on private property within the limits of the Municipality of Bluewater, except if authorized to do so by the owner of the private property.

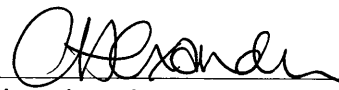
- 2.7 No person shall interfere with an officer carrying out his/her duties enforcing this by-law
- 2.8 An ORV, as defined in this by-law, shall be subject to all parking restrictions as identified within the Municipality of Bluewater's Traffic and Parking By-law, as amended from time to time.
- 2.9 Every Person who contravenes any provision of this by-law is guilty of an offence and upon conviction is liable to a fine and such other penalties as provided for by the Provincial Offences Act, R.S.O. 1990, Chapter P. 33, as amended.
- 2.10 Every Person guilty of an offence under this by-law may, if permitted under the Provincial Offences Act, pay a set fine, and the Chief Judge of the Ontario Court of Justice shall be requested to establish set fines in accordance with Schedule "A" attached to this by-law.
3. THAT this By-law shall come into effect on the date of passing.

By-law read a first and second time this 16th day of December, 2024.

By-law read a third time and finally passed this 16th day of December, 2024.



Paul Klopp, Mayor



Chandra Alexander, Clerk

Schedule "A" to By-Law Number 121-2024

PART 1 – Provincial Offences Act Set Fine Schedule

Item	Column 1 Short Form Wording	Column 2 Provision Creating of Defining Offence	Column 3 Set Fine
1.	Operating an off-road vehicle on municipal property.	Section 2.5	\$350

NOTE: The general penalty section for the provisions cited above is in section 61 of the Provincial Offences Act.